

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

NIELSEN & BAINBRIDGE, LLC, *Complainant*

v.

ORIENT OVERSEAS CONTAINER LINE LIMITED; AND OOCL
(EUROPE) LIMITED, *Respondents*.

DOCKET NO. 25-31

Served: January 28, 2026

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

SCHEDULING ORDER AND ORDER TO RESUBMIT

On January 23, 2026, Complainant Nielsen & Bainbridge, LLC (“NBG”) and Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (collectively, OOCL), filed their first joint status report and proposed discovery schedule (“JSR 1”).

The parties propose completing discovery in mid-November 2026, ten months after the answer was filed and well over the 150 days set by the Commission’s Rules. 46 C.F.R. § 502.141(g). The parties also propose a briefing schedule starting nearly two months after discovery closes and extending into March 2027, over a year from now. The parties have not provided good cause for such an extended period of discovery and briefing at this point in the proceeding. Briefing that exceeds the typical period allowed (four weeks after the close of discovery, followed by the opposition brief four weeks later, and reply brief two weeks after the opposition brief), may not be adopted or may be shortened.

Accordingly, the parties are **ORDERED** to follow the partial schedule below, and to resubmit by **February 4, 2026**, a proposed discovery schedule for the remaining milestones that completes discovery by July 1, 2026.

February 9, 2026	Parties serve initial requests for production of documents, ESI, and interrogatories
March 11, 2026	Parties serve objections to initial requests for production of documents, ESI, and interrogatories
April 6, 2026	Parties submit any unresolved disputes regarding initial requests for production, ESI, and interrogatories

The parties are reminded that a “scheduling order ‘is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.’” *Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985)). Moreover, “[p]arties cannot control an agency’s docket or procedures through agreement among themselves.” *Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983). The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).

Motions will not automatically stay other deadlines in the proceeding. If a motion could impact other deadlines, that should be clearly addressed in the motion and any response. All requests for extension of time will be reviewed for good cause, even if the parties agree on the requested extension. Pursuant to the Howard Coble Coast Guard and Maritime Transportation Act of 2014 and Commission Docket No. 15-06, attorney fees may be awarded to any prevailing party in a complaint proceeding. It is therefore in the best interest of the parties to proceed expeditiously.

Any filing submitted without page numbers, including on exhibits, may be rejected. Parties must also follow the instructions in the Initial Order, including the requirements for submitting confidential information. All filings “must be filed with the Secretary, Federal Maritime Commission.” 46 CFR 502.2(a). This filing requirement applies to both the confidential and public versions of filings. The Commission has waived paper filing requirements and permitted filings by email. Therefore, filings of confidential versions of documents, as well as the public version, should be sent by email to secretary@fmc.gov with a courtesy copy to judges@fmc.gov. Confidential filings should be clearly marked on the subject line, in the email, and on the document itself. Parties may be required to refile any documents that do not follow the requirements above or in the Initial Order.

The parties are directed to consult with each other to determine the most practicable way to send electronic copies of documents in a word-processing format to each other. The parties are directed to email the electronic copy in a word-processing format of required documents to the Office of Administrative Law Judges at the following email address: judges@fmc.gov, with opposing counsel copied. Word-processing versions should not be submitted to the Office of the Secretary.

The parties are encouraged to stipulate to facts that are not in contention, to coordinate deposition schedules for NBG’s former employee witnesses with the parties in 25-02 and 25-30, and to employ other discovery tools to narrow the issues.



Linda S. Harris Crovella
Administrative Law Judge